



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**HABARAKADA SIRI DHARMAWIJEYA
SAHANA SEWA FOUNDATION
(INCORPORATION)
ACT, No. 18 OF 2000**

[Certified on 31st May, 2000]

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Foundation (Incorporation) Act, No. 18 of 2000*

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L. D.—O. 47/97

AN ACT TO INCORPORATE THE HABARAKADA SIRI
DHARMAWIJEYA SAHANA SEWA FOUNDATION

WHEREAS a Foundation called and known as the “Habarakada Siri Dharmawijeya Sahana Sewa Foundation” has heretofore been established at No. 278/4, Dharmawijeya, Habarakada, Homagama for the purpose of effectually carrying out and transacting all objects and matters connected with the said Foundation according to the rules agreed to by its members :

Preamble.

AND WHEREAS the said Foundation has heretofore successfully carried out transacted the several objects and matters for which it was established and has applied to be incorporated and it is for the public advantage to grant such application :

BE it therefore enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

1. This Act may be cited as the Habarakada Siri Dharmawijeya Sahana Sewa Foundation (Incorporation) Act, No.18 of 2000.

Short title.

2. From and after the date of commencement of this Act, such and so many persons as now are members of the Habarakada Siri Dharmawijeya Sahana Sewa Foundation (hereinafter referred to as “the Foundation”) or shall hereafter be admitted members of the Corporation hereby constituted, shall be a body corporate (hereinafter referred to as the “Corporation”) with perpetual succession, under the name and style of the “Habarakada Siri Dharmawijeya Sahana Sewa Foundation” and by that name may sue and be sued in all courts with full power and authority to have and use a common seal and to alter the same at its pleasure.

Incorporation of the
Habarakada Siri
Dharmawijeya
Sahana Sewa
Foundation.

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General objects of
the Corporation.

3. The general objects for which the Corporation is constituted are hereby declared to be —

- (a) to establish and maintain educational institutions and students' hostels in any part of Sri Lanka ;
- (b) to provide financial aid and award scholarships to needy students ;
- (c) to provide medical aid, food, clothings and housing to the poor, the destitute and the sick ;
- (d) to provide welfare facilities to the blind, the deaf and the dumb ;
- (e) to develop and upgrade the education of laymen and monks by conducting courses of study in Sinhala, Pali, Sanskrit, Buddhism, Ayurveda and sciences ;
- (f) to conduct all religious ceremonies approved by the Corporation and to conduct the annual memorial pinkama to commemorate Rev. Wallambagala Sri Pangnasara Thero ; and
- (g) to do all other things necessary or expedient for the carrying out of the objects of the Corporation.

General Powers of
the Corporation.

4. Subject to the provisions of this Act and any other written law, the Corporation shall have the power to do, perform and execute, all such acts, matters and things as are necessary or desirable for the promotion or furtherance of the objects of the Corporation or any one of them, including the power to open, operate and close bank accounts, to borrow or raise money with or without security, to receive or collect grants and donations, to invest its funds, to enter into contracts and agreements and to engage, employ and dismiss officers and servants, required for the carrying out of the objects of the Corporation.

5. (1) The affairs of the Corporation shall, subject to the provisions of this Act and rules in force for the time being of the Corporation be administered by a Board of Management elected in accordance with the rules of such Corporation.

Management of the affairs of the Corporation.

(2) The first Board of Management of the Corporation shall consist of the members of the Board of Management of the Foundation holding office on the day immediately preceding the date of commencement of this Act.

6. (1) It shall be lawful for the Corporation, from time to time, at any general meeting and by a majority of the members present and voting, to make rules, not inconsistent with the provisions of this Act or any other written law, for all or any of the following matters :—

Rules of the Corporation

- (a) the classification of membership and admission, withdrawal or expulsion of members ;
- (b) the election of the office bearers, the resignation from or vacation of, or removal from office of office bearers and their powers, conduct and duties ;
- (c) the election of the members of the Board of Management, its powers, conduct and duties and the terms of office of members of the Board of Management ;
- (d) the powers, conduct, duties and functions of the various officers, agents and servants of the Corporation ;
- (e) the procedure to be observed at for summoning and holding of meetings of the Board of Management, the time, place, notice and agenda of such meetings; the quorum therefor and the conduct of business thereat ;

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(f) the administration and management of the property of the Corporation, the custody of its funds, and the maintenance and audit of its accounts ; and

(g) generally, for the management of the affairs of the Corporation and the accomplishment of its objects.

(2) Any rule made by the Corporation may be amended, altered, added to, or rescinded at a like meeting and in like manner as a rule made under subsection (1).

(3) The rules of the Foundation in force on the day immediately preceding the date of commencement of this Act shall, in so far as they are not consistent with the provisions of this Act or any other written law be deemed to be the rules of the Corporation made under this section.

(4) The members of the Corporation shall be subject to the rules of the Corporation.

Fund of the
Corporation.

7. (1) The Corporation shall have its own fund and all moneys received by way of donation, testamentary disposition, transfer, contributions, or fees shall be deposited in the name of the Corporation in one or more Banks as the Board of Management shall determine.

(2) The Board of Management may create any depreciation fund, reserve or sinking fund for the rehabilitation, improvement and development of the property of the Corporation.

(3) There shall be paid out of the fund, all such sums of money as may be incurred as expenditure by the Corporation in the exercise, performance and discharge of its powers, duties and functions under this Act.

8. (a) The financial year of the Corporation shall be the calendar year. Audit and accounts.

(b) The Corporation shall cause proper accounts to be kept of its income and expenditure, assets and liabilities and all other transactions of the Corporation.

(c) The accounts of the Corporation shall be audited by a qualified auditor.

In this section, "qualified auditor" means—

- (i) an individual who being a member of the Institute of Chartered Accountants of Sri Lanka, or of any other Institute established by law, possesses a certificate to practise as an Accountant issued by the Council of such Institute ; or
- (ii) a firm of Accountants each of the resident partners of which, being a member of the Institute of Chartered Accountants of Sri Lanka or of any other Institute established by law possesses a certificate to practise as an Accountant issued by the Council of such Institute.

9. (1) The Corporation shall be as a non-profit organisation and no part of the gains, profits or dividends, if any, of the Corporation shall be distributed among the members of the Corporation. Corporation to be a non-profit organization.

(2) In the case of the dissolution of the Corporation all the assets remaining after payment of all debts and liabilities thereof, shall be transferred to an organisation established exclusively for charitable or educational purposes and which, is by the rules thereof, prohibited from distributing assets among its members.

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Debts due by and payable to the Foundation.

10. All debts and liabilities of the Foundation existing on the day immediately preceding the date of commencement of this Act, shall be paid by the Corporation hereby constituted, and all debts due to, subscriptions and contributions payable to, the Foundation on that day shall be paid to the Corporation for the purposes of this Act.

Corporation may hold property, movable or immovable.

11. The Corporation shall be able and capable in law, to acquire and hold any property movable or immovable which may become vested in it by virtue of purchase, grant, gift, testamentary disposition or otherwise, and all such property shall be held by the Corporation for the purposes of this Act, and subject to the rules in force for the time being of the Corporation, it shall have full power to sell, mortgage, lease, exchange or otherwise dispose of the same.

Seal of the Corporation.

12. The seal of the Corporation shall not be affixed to any instrument whatsoever except in the presence of the Chairman, the Secretary or the Treasurer who shall sign their names to the instruments in token of their presence, and such signing shall be independent of the signing of any person as a witness.

Saving of the rights of the Republic and others.

13. Nothing in this Act contained shall prejudice or affect the rights of the Republic or of any body politic or corporate or of any other persons, except, such as are mentioned in this Act, and those claiming by, from, or under, them.

Sinhala text to prevail in case of inconsistency.

14. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

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